

OLA 1957 & OLA 1984: Review and Apply

Dr. Megan Blakely

m.Blakely@Lancaster.ac.uk

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Signposts:

- Brief review of Week 11
- MCQs for Practice
- Problem Question Application and Technique

• *IMG: Blakely, M. Good morning from Evie! 2026.*

Occupiers' Liability

- Liability of occupiers for people injured or property where loss/injury results from danger related to state of occupier's premises
- Such liability developed under the common law (Now primarily governed by statute)
 - Partial codification of negligence liability (duty and breach)
- Occupiers Liability Act 1957 – liability in respect of lawful **visitors**
- Occupiers Liability Act 1984 – liability in respect of **trespassers/ non-visitors**

OLA Codification Summary

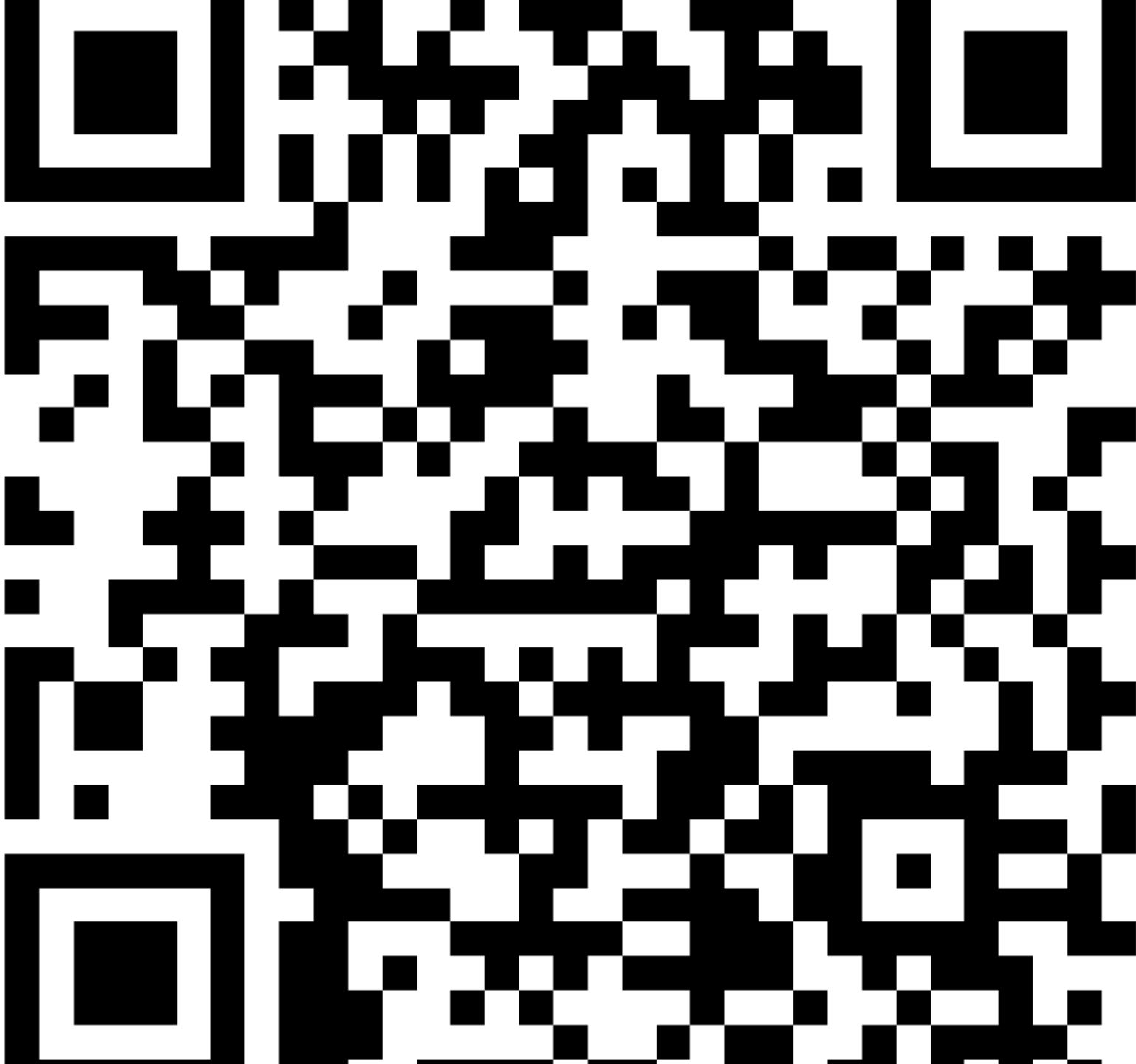
- Duty:
 - Visitors: s 2(1) OLA 1957
 - Trespassers: s 1(3) OLA 1984
- Breach:
 - Visitors: establish standard of care s2(3)(a); prove breach; consider any mitigations, specialist visitors s2(3)(b), warnings s2(4)(a); and/or independent contractors s2(b)(b)
 - Trespassers: standard of care, breach, *but only warnings* s1(5)
- Causation: common law
- Remoteness: common law

OLA Similarities (non-exhaustive)

- ** Much more to come in workshops!
- Partially codify negligent liability in certain circumstances
- Standards for warnings
- Require causation and remoteness
- *Volenti* and contributory negligence defences available

OLA Differences (non-exhaustive)

- Claimant status
- Duty (broader for visitors)
- Standard of care
 - NB specific variations in 1957
- Explicit standards for warnings (including OLA 84 'statutory escape hatch')
- Property damage recovery



OLA 1957 MCQ

- Bonus: Think of the most applicable cases for each answer.
- <https://forms.office.com/e/tFa8B8rSCw?origin=IprLink>

OLA 1984 MCQ

- Bonus: Think of the most applicable cases for each answer.
- <https://forms.office.com/e/aeB0jdcS0u?origin=lprLink>



(very) short problem question

- Maeve rents a house with an outdoor hot tub. She has a seven-year-old daughter, Anna, and two cats. She often invites her neighbours, Bob and his eight-year-old son, Gene over for hot tub night. Maeve knew one side of the tub was loose, so when they came over last night, Maeve said, 'Hey, be extra careful; you know you could slip!' Bob went first, climbed over the loose edge (which gave way), and he broke his smart watch and cut his foot. He and Gene left immediately.
- Gene was sad he did not get to play in the hot tub or spend time with the cats. He sneaked back over. Anna saw him and came out. They started chasing the cats together. Gene slipped on excess water that had drained from the broken hot tub edge. He landed on his smartphone and also broke his ankle.
- Advise parties on liability.

**Move to checklist and
apply.**

(5 minutes).

Start with Bob v Maeve. Go to Gene v
Maeve if you have time!

PQ 'cheat sheet' start

- Parties: B v M, G v M.
 - B v M.
 - Facts: B invited by occupier (wheat) M. Static property danger (Tomlinson), known to M. Insufficient /ineffective warning (Tomlinson) not enabling B to be reasonably safe in all circumstances. B using for invited purposes (Calgarth). Physical and property injury.. (Notes for yourself).
 - 'Bob may be able to successfully claim for his physical and property damage under the Occupier's Liability Act 1957 (OLA 57). The OLA 57 applies to invited visitors ...'
 - First, the occupier of the relevant premises must be determined. The occupier, who exercises a degree of control over the premises is the correct defendant
 - The occupier (Maeve) must exercise a 'common **duty** of care' to all visitors (s 2.1), which is to 'such care as in all the circumstances of the case is reasonable to see that the visitor will be reasonably safe in using the premises for the purposes for which he is invited or permitted by the occupier to be there.' (s 2.2)
 - Maeve breached by... (2.3).She did not discharge her duty with a warning because... (s 2.4.b)
 - Causation/remoteness (Barnett/Wagon Mound)
 - Defences?
 - Remedies (later)

Consider...

- And what if...
 - Maeve had given a different warning to Bob?
 - Maeve had called the landlord, and the repair person told Maeve the hot tub was fixed. How can Maeve check the hot tub?
 - Gene (a child) had gone in first?
 - Gene had gone into the hot tub when he sneaked back in and was then injured?
- Bonus: Are cats an allurement for children?

• *IMG: Blakely, M. 'Evie in Catio' 2025*

